

Nightmare WITHOUT END

The blunders over Bhopal at the legal level even as the convicted persons get

| By Ambreesh Mishra |

Shock, horror, outrage. Those were the dominant reactions when the world woke up to the nightmare of Bhopal on that December morning in 1984. Over 26 years later, those were again the dominant reactions following the judgement of the Bhopal district court last week which awarded a shamefully light two-year sentence to the seven accused in the world's worst industrial disaster. An estimated 15,000 people died after inhaling the poisonous gas that escaped from the Union Carbide (UC) factory in Bhopal. The people were out on the streets once again protesting the verdict even as six of the seven accused in the Bhopal gas disaster criminal case, including industrialist Keshub Mahindra, were

THE PICTURE THAT
BECAME A SYMBOL
OF THE TRAGEDY



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escorted to safety by the police three hours after they were sentenced and given bail. With that, the curtain has come down on perhaps the longest running criminal trial in Indian history. It's been over 26 years since the registration of the first FIR on the morning of December 3, 1984 when Bhopal woke up to the horror of the killer pesticide gas leak and 23 years since the CBI first filed a charge-sheet on December 1, 1987. Chief judicial magistrate (CJM) Mohan P. Tiwari held eight, including Union Carbide India Ltd (UCIL), its non-executive chairman Mahindra, MD Vijay Gokhale and vice-president Kishore Kamdar, Bhopal plant's works manager J. Mukund, production manager S.P. Chaudhary, plant superintendent K.V. Shetty and production assistant S.I. Qureshi guilty under Sections 304 (A), 338, 337 and 336 of the IPC, and pronounced a two-year sentence.

The sense of anger and outrage was felt

across the world as the international media and even prominent American senators condemned the verdict and the fact that the man labelled "The Butcher of Bhopal", the then chairman of Union Carbide Corporation (UCC), Warren Anderson's name did not even appear in the list of convicted. Ironically, the case itself is titled 'Govt of MP v/s Warren Anderson and others' with Anderson as the prime accused. Anderson, now retired, lives in Long Island while UCC is now Dow Chemicals.

The Legal Blunders

Since sentences under different sections run concurrently, effectively, each of the seven convicted will serve two years imprisonment and pay a fine of Rs 1,01,750 each, while UCIL will pay a fine of Rs 5,01,750. The gross mismatch between the quantum of punishment and the havoc of 15,274 deaths and 5.74 lakh